

REGULATORY WATCH · CMMC REFORM

CMMC Phase II Is Paused. Your DFARS 7012 Clock Isn't.

The Department of War suspended CMMC Phase II and opened a 60-day reform review — but DFARS 252.204-7012 obligations didn't pause with it.

BY MAXINE READING TIME · 4 MIN CMMC · DFARS · NIST-800-171 · COMPLIANCE

On July 13, the Department of War suspended CMMC Phase II requirements immediately and opened a 60-day reform review — and the easiest mistake a defense contractor can make this month is reading that as an off switch. It isn't one. The certification mandate paused; the underlying obligation to protect controlled unclassified information did not, and the gap between those two facts is where programs either keep their footing or lose a quarter they won't get back.

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CMMC

What actually got suspended

The clause that stopped is DFARS 252.204-7021 — the one added by the CMMC rule that requires a certificate as a condition of contract award. The clause that didn't stop is DFARS 252.204-7012, in your contracts since 2017, which requires NIST SP 800-171 implementation, a current self-assessment score in SPRS, and incident reporting to DoD within 72 hours of discovery. Federal News Network's framing of the pause — DoD "pauses CMMC, but contractors still have obligations" — is the whole story in eight words. The certification gate came down; the safeguarding duty it was built to verify stayed exactly where it was.

That distinction matters because the two clauses carry different consequences. Missing a 7021 certification blocks an award. Misstating a 7012 posture is a False Claims Act exposure — the kind of liability that doesn't care whether the certification program that would have checked your work is running this quarter or not.

60

DAY REFORM REVIEW THE
DEPARTMENT OF WAR
OPENED ALONGSIDE THE
PAUSE

72

HOURS TO REPORT A CYBER
INCIDENT UNDER DFARS 7012
— UNTOUCHED BY THE
PAUSE

The reform task force wants your comment, not just your patience

The 60-day review isn't happening in a room without you. The Department opened a CMMC Reform Task Force RFI, and the law firms tracking it are right to frame it as a chance, not just a notice: contractors have a window to argue for scoping relief, assessor capacity fixes, or cost proportionality for small subs before the next version of the rule is final. A sub who sits this window out gets whatever a prime's compliance office and a handful of large integrators propose on their behalf. The comment period is short and it is open now — that is the actual news inside the news.

◆ ONE NAME CHANGE,
TWO CLAUSES

"Department of War" is the renamed DoD. Keep the two DFARS clauses straight regardless of letterhead — 7021 (certification) paused, 7012 (safeguarding) did not.

The pause isn't the only rulemaking in flight

The same week, the FAR Council put out its own revised CUI safeguarding and incident-reporting framework, and legal trackers described the moment as a wider wave — new proposed rules touching CUI handling, foreign ownership and control (FOCI), and post-quantum timelines alongside CMMC. Read together, the signal isn't retreat. It's re-architecture: the government is moving pieces of the same compliance burden between FAR and DFARS while it decides where CMMC's Phase II lands. A contractor who reads only the CMMC headline and skips the parallel FAR docket will be surprised twice instead of once.

National Defense Magazine called it plainly: the pause has thrown "the future of the Pentagon's cybersecurity program" into question.

What this does not claim

It does not claim Phase II is cancelled — a suspension with a 60-day review is not a repeal, and every law firm alert in this week's coverage frames it as reform, not retreat. It does not claim the FAR Council's CUI proposal is final text — it is a proposed rule, subject to comment and revision like any other. And it does not claim we know what the reform task force will recommend; nobody outside that room does yet. What can be said with confidence is narrower and more useful: the certification clause paused, the safeguarding clause didn't, and the comment window is open now.

Where programs actually stall

We've watched this pattern before, on a smaller scale, every time an assessment deadline slipped: leadership reads "paused" as "postponed indefinitely," reassigns the person who owned the POA&M, and lets evidence collection lapse. Ninety days later the review lands, or an assessor shows up on a prime's schedule, and the program is doing the same first-quarter work described in our [First 90 Days of CMMC Level 2](#) piece — except now a quarter behind and explaining a gap in the record instead of building it. The other failure mode is simpler: treating the RFI window as somebody else's fight and finding out later that the "somebody else" shaped the next rule around a much larger contractor's cost structure.

The contractors who come out of this 60-day window ahead are doing two things in parallel, not choosing between them: keeping the SSP, POA&M, and evidence pipeline moving under 7012 exactly as if certification were still on the calendar, and putting a comment in the reform docket while it's still open. The certificate requirement can come back on a different timeline. The record of what you actually did during the pause cannot be reconstructed after the fact.

MacTech Solutions runs [CMMC readiness assessments](#) built around the DFARS 7012 baseline, not just the certification gate — because that baseline is the part that doesn't pause. If your program's evidence pipeline lapsed with the Phase II news, [talk to us](#) before the next deadline, whichever rule sets it. ♦

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